

6. 9:00 AM CASE NUMBER: C24-00016
CASE NAME: NICHON ROBERSON VS. BL HOMES, INC
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PETER ROBERSON
FILED BY:

TENTATIVE RULING:

Denied, without prejudice. Fails to comply with CRC 3.1362(c), which requires that counsel's declaration "state in general terms and without compromising the confidentiality of the attorney-client relationship" why a motion is necessary. If counsel notifies the Court that they wish to appear, they may appear and request a continuance to submit a supplemental declaration.

7. 9:00 AM CASE NUMBER: C24-00637
CASE NAME: AARON COHOON VS. MICHAEL SOARES
*HEARING ON MOTION IN RE: OLD REPUBLIC SURETY COMPANYS (1) MOTION TO DEPOSIT BOND FUNDS WITH COURT; (2) FOR EXONERATION OF BOND AND DISMISSAL OF OLD REPUBLIC SURETY COMPANY; (3) FOR AWARD OF ATTORNEYS FEES (MOTIONS)
FILED BY: OLD REPUBLIC SURETY COMPANY

TENTATIVE RULING:

Withdrawn by moving party, December 9, 2025.

8. 9:00 AM CASE NUMBER: C24-02383
CASE NAME: CARISSIA ELKINS VS. FOOD 4 LESS OF CALIFORNIA, INC
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR PLTF
FILED BY: ELKINS, CARISSIA

TENTATIVE RULING:

The motion is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

9. 9:00 AM CASE NUMBER: C24-02642
CASE NAME: CRUZ SERRANO VS. KOHANA COFFEE, LLC
*HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Plaintiffs Cruz De Leon Serrano and Graciela Rodriguez move for final approval of their class action and PAGA settlements with defendant Kohana Coffee LLC.

A. Background and Settlement Terms

The original complaint was filed by plaintiffs on October 1, 2024, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation.

The settlement would create a gross settlement fund of \$130,000. The class representative payment to plaintiff would be up to \$7,500 for each plaintiff (\$15,000 total). Attorney's fees would be

\$43,333.33 (one-third of the settlement). Litigation costs would not exceed \$6,500 (\$5,884.23 actually are sought). The settlement administrator's costs would be \$6,500. PAGA penalties would be \$20,000. Because the LWDA notices in question were filed after June 19, 2024, the employees would receive a 35% share of PAGA penalties, or \$7,000. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about \$55,667. The fund is non-reversionary. Based on the estimated class size of 128, the average net payment for each class member/aggrieved employee is approximately \$434.

The proposed settlement would certify a class of all former non-exempt employees employed by Defendants during the class period. (The facility has closed, so there are no current employees in the class.)

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller's unclaimed property fund.

Since preliminary approval, notice has been given to the class. 123 notice packages were mailed. Only 4 notices remain undeliverable. No objections have been received. No requests for exclusion have been received.

The settlement contains release language (See Par. 5.2.) covering "all claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint[.]" Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA

concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount (\$43,333.33) as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Counsel have calculated a lodestar of \$56,355, based on 86.70 hours by attorney Maralle Messrelian at \$650 per hour. This resulted in an imputed multiplier of 0.769. No adjustment is necessary. The requested attorney’s fees are reasonable and are approved.

Litigation costs of \$5,884.23 are reasonable and are approved.

Settlement administration costs of \$6,500 are reasonable and are approved.

The requested representative payment of \$7,500 for each of the two plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests are discussed in *Clark v.*

American Residential Services LLC (2009) 175 Cal.App.4th 785, 804-807. Mr. Serrano attests that he has given a general release of claims, but identifies no additional claims of value that he had. He was actively involved in the case and estimates that he spent at least 18 hours of time on it. He also is concerned that his role in this case could affect his future employment prospects. Ms. Rodriguez submits a similar declaration, estimating that she spent 16.5 hours on the case. All things considered, the representative payments are approved in the amount of \$7,500 each.

D. Conclusion

The Court finds that the proposed settlement is fair, reasonable, and adequate, and approves it. **The motion is granted.**

Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, which shall be set in consultation with the Department Clerk. **Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.**

10. 9:00 AM CASE NUMBER: C24-02677
CASE NAME: AMERICAN MLB FEDERAL INVESTMENTS VS. SHERI KELLEHER
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KELLEHER, SHERI
TENTATIVE RULING:

The demurrer, filed by defendants Sheri Kelleher and Paul Crinks, is **overruled**, as discussed below. **Defendants shall file their answer on or before January 5, 2026.**

I. Factual Background

The complaint here involves quiet title claims by plaintiffs to an easement over the properties of demurring defendants, whose properties are within the boundaries of defendant Sanders Ranch HOA. Plaintiffs' property is "immediately adjacent to, and east of the Sanders Ranch subdivision, in the town of Moraga, California." (Complaint, ¶14.)

Plaintiffs' property was previously held in common ownership with the properties of moving defendants and other properties in the HOA. At one point, in 2006, then-owner of plaintiff's property, "Roberts," also owned parcels A, B, and C, depicted in the drawing below (from Exhibit F to Complaint).